

Opinion of the Court

triterritorial aspect of the case, and Congress’s “repeated refusals” to create a damages remedy for injuries incurred on foreign soil—counseled against an extension of *Bivens*. 885 F. 3d, at 816–823.

We granted certiorari, 587 U. S. 1025 (2019), and now affirm.

II

In *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388, the Court broke new ground by holding that a person claiming to be the victim of an unlawful arrest and search could bring a Fourth Amendment claim for damages against the responsible agents even though no federal statute authorized such a claim. The Court subsequently extended *Bivens* to cover two additional constitutional claims: in *Davis v. Passman*, 442 U. S. 228 (1979), a former congressional staffer’s Fifth Amendment claim of dismissal based on sex, and in *Carlson v. Green*, 446 U. S. 14 (1980), a federal prisoner’s Eighth Amendment claim for failure to provide adequate medical treatment. After those decisions, however, the Court changed course.

Bivens, *Davis*, and *Carlson* were the products of an era when the Court routinely inferred “causes of action” that were “not explicit” in the text of the provision that was allegedly violated. *Abbasi*, 582 U. S., at 132. As *Abbasi* recounted:

“During this ‘*ancien regime*,’ . . . the Court assumed it to be a proper judicial function to ‘provide such remedies as are necessary to make effective’ a statute’s purpose Thus, as a routine matter with respect to statutes, the Court would imply causes of action not explicit in the statutory text itself.” *Ibid.* (quoting *Alexander v. Sandoval*, 532 U. S. 275, 287 (2001); *J. I. Case Co. v. Borak*, 377 U. S. 426, 433 (1964)).

Bivens extended this practice to claims based on the Constitution itself. 582 U. S., at 131–132; *Bivens*, 403 U. S., at 402 (Harlan, J., concurring in judgment) (Court can infer availabil-